

acquiescence. See Cobb Decl., **Exhibit D** (“We will postpone the PMK interview currently scheduled...”).

Petitioner has not shown that Respondent has failed to produce a witness on the designated topics. Indeed, that has already happened. To the extent that the prior witness was produced to be interviewed, Petitioner has failed to demonstrate that the witness failed to adequately address Topics 19 and 20. The further reply declaration still fails to sufficiently describe the extent of Ms. Dank’s testimony on the subject topics. The reply declaration briefly describes asking the witness “two questions related to the existence and processing of other complaints regarding the Fair Chance Act. CRD also asked the witness if she knew who might have knowledge about investigation of such complaints.” See Declaration of Val Erze filed April 20, 2026 (“Erze Reply Decl.”), ¶13. This says nothing about the scope of the response. Nor was any transcription, if any, provided, as noted above.

Nonetheless, the Court encourages the parties to meet and confer further to resolve the issue about whether a further PMQ designation and interview on these topics may resolve the pending issues.

The Court further notes that Respondent’s opposition declaration appears to downplay the extent to which it expressly refused to produce a PMQ on Topics 19 and 20. See Cobb Decl., ¶¶6-8. However, it appears that there was an outright refusal and standing on the objections. See Erze Reply Decl., **Exhibit 1** (“**Topics 19–20:** Respondent maintains its objections and will not produce a PMK on these topics.”).

Still, the Court concludes that Petitioner has failed to make a sufficient showing for the relief requested, especially given its voluntarily taking the January 2026 PMQ Subpoena off calendar and its failure to make sufficient substantive showing as to the substance of the initial PMQ testimony.

Disposition

The Court finds and rules as follows:

1. The Petition is DENIED and the OSC is DISCHARGED.
2. The Court shall enter the order after hearing.

2. 10:00 AM CASE NUMBER: C24-00605
CASE NAME: VIKAS PRAKASH VS. WILSON AQUINO
JURY TRIAL
FILED BY:
TENTATIVE RULING:

Continued pursuant to Order dated April 24, 2026.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: PROTECTIVE ORDER RE DEPOSITION OF MELISSA CASE**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

Defendant Michelle Tiernan ("Defendant") filed a Motion for Protective Order re Deposition of Melissa Case on December 9, 2025 (the "Motion for Protective Order"). The Motion for Protective Order was set for hearing on April 27, 2026. The motion is opposed.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. Code Civ. Proc. § 2025.420(a). The motion shall be accompanied by a meet and confer declaration under Section 2016.040. *Id.* The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. *Id.* at § 2025.420(b).

The Motion for Protective Order indicates that it is based, among other things, on "the Declaration of Nathan D. Pastor, Esq. In Support of Motion For Protective Order Re Deposition of Melissa Case and accompanying exhibits" See Motion for Protective Order, p. 2. As noted in the Opposition, no such declaration appears of record. Moreover, no meet and confer declaration pursuant to Code of Civil Procedure section 2016.040 has been filed.

Accordingly, the motion is wholly unsupported by any showing of a basis to grant the motion and procedurally defective. For those reasons alone, the motion must be denied.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is DENIED.
2. The Court shall issue the order after hearing.